

➔ Norwegian version

Act relating to kindergartens (the Kindergarten Act)

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Kapitteloversikt:

- Chapter I. Purpose and content of kindergartens
 - Chapter II. Participation by children and parents
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Amendment acts incorporated in this text: This translation includes amendment Acts of 22 June 2018 No. 64 (in force 1 October 2018 and 22 June 2018 No. 84 (in force 1 August 2018) and all earlier amendment Acts.

Amendment act incorporated by Lovdata: Act of 22 Juni 2018 No. 83.

This is an unofficial translation of the Norwegian version of the Act and is provided for information purposes only. Legal authenticity remains with the Norwegian version as published in Norsk Lovtidend. In the event of any inconsistency, the Norwegian version shall prevail.

The translation is provided by the Ministry of Education and Research

Chapter I. Purpose and content of kindergartens

Section 1. *Purpose*

The Kindergarten must, in collaboration and close understanding with the home, safeguard the children's need for care and play, and promote learning and formation as a basis for an all-round development. The Kindergarten must be based on fundamental values in the Christian and humanist heritage and tradition, such as respect for human dignity and nature, on intellectual freedom, charity, forgiveness, equality and solidarity, values that also appear in different religions and beliefs and are rooted in human rights.

The children must be able to develop their creative zest, sense of wonder and need to investigate. They must learn to take care of themselves, each other and nature. The children must develop basic knowledge and skills. They must have the right to participate in accordance with their age and abilities.

The Kindergartens must meet the children with trust and respect, and acknowledge the intrinsic value of childhood. They must contribute to well-being and joy in play and learning, and must be a challenging and safe place for community life and friendship. The Kindergarten must promote democracy and equality and counteract all forms of discrimination.

Section 1a. *Special purpose*

Owners of private kindergartens may prescribe in their statutes that the values in Section 1 will not be based on the Christian and humanistic heritage and tradition.

Private kindergartens and kindergartens owned or run by parishes of the Norwegian State Church may incorporate in their statutes special provisions in regard to ideological objectives.

Section 2. *Content of kindergartens*

Kindergartens must be pedagogical facilities.

Kindergartens must provide children with opportunities for play, self-expression and meaningful experiences and activities.

Kindergartens must take account of children's age, level of functioning, gender, social, ethnic and cultural background, including the language and culture of Sami children.

Kindergartens must impart values and culture, provide room for children's own cultural creativity and help to ensure that all children experience joy and ability to cope in a social and cultural community.

Kindergartens must nurture children's curiosity, creativity and desire to learn and offer challenges based on the children's interests, knowledge and skills.

Kindergartens must have a health-promoting and preventive function, and must contribute to even out social inequalities.

The Ministry must issue regulations to lay down more detailed guidelines for the content and tasks of kindergartens (framework plan).

The owner of a kindergarten may adapt the framework plan to local conditions.

On the basis of the framework plan for kindergartens, the coordinating committee for each kindergarten must establish an annual plan for the pedagogical activities.

Section 2 a. *Duty to cooperate with schools in the transition from kindergarten to school*

The kindergarten must cooperate with the school concerning children's transition to school and concerning before and after school programmes, cf. Section 13-5 of the Education Act and Section 5-5 of the Independent Schools Act. This cooperation must contribute to ensuring that children have a good and secure transition.

Chapter II. Participation by children and parents

Section 3. *Children's right to participate*

Children in kindergartens must have the right to express their views on the day-to-day activities of the kindergarten.

Children must regularly be given the opportunity to take active part in planning and assessing the activities of the kindergarten.

The children's views must be given due weight according to their age and maturity.

Section 4. *Parents' council and coordinating committee*

In order to ensure collaboration with the children's homes, each kindergarten must have a parents' council and a coordinating committee.

The parents' council must comprise the parents/guardians of all the children and must promote their common interests and help to ensure that the collaboration between the kindergarten and the parents as a group fosters a good environment in the kindergarten. If, pursuant to Section 15, a maximum limit for parents' fees has been prescribed in the regulations, only the parents' council may consent to parents paying fees in excess of this amount.

The coordinating committee must be an advisory, contact-promoting and coordinating body. The coordinating committee must comprise parents/guardians and the staff of the kindergarten so that each group is equally represented. The owner of the kindergarten may participate if desired, but may not have more representatives than either of the other groups.

The owner of the kindergarten must ensure that matters of importance are submitted to the parents' council and the coordinating committee.

Section 5. *Joint coordinating committees for kindergartens and schools*

The municipality may decide that there will be joint coordinating committees for municipal kindergartens and primary schools. Where both parties so wish, a corresponding arrangement may be established for private kindergartens and municipal or private schools. In such cases, the coordinating committee must also be composed pursuant to Section 4, third subsection, but in such a way that parents/guardians and staff from both the kindergarten and the school are represented, cf. Section 11-1, fourth subsection, of the Act relating to Primary and Secondary Education (the Education Act).

Chapter III. Obligation to seek approval and distribution of responsibilities

Section 6. *The obligation of the facility to seek approval*

Facilities that have responsibility for children under compulsory school age are obligated to seek approval as a kindergarten when:

- a) the facility operates on a regular basis and one or more children spend more than 20 hours per week there, and
- b) the number of children who are present at the same time is ten or more when the children are three years old or older, or five or more when the children are less than three years old, and
- c) the activity is carried out in return for remuneration.

Facilities pursuant to the first subsection must be approved before they commence operating.

Section 7. *Responsibilities of the owner of a kindergarten*

The owner of a kindergarten must operate the facility in accordance with current statutes, rules and regulations.

Municipalities that are owners of kindergartens must produce information on service data. Non-municipal owners of kindergartens must produce information on service data and accounting data. The Ministry issues further regulations concerning submission of service data and accounting data.

Kindergarten owners are obligated to give the municipality in which a child resides such information as is necessary to be able to keep a register as mentioned in Section 8, fourth subsection.

The owner of a kindergarten must lay down the statutes of the kindergarten. The statutes must provide information of significance for the parents'/guardians' relationship to the kindergarten, including

- a) ownership,
- b) purpose, cf. Sections 1 and 1a,
- c) admission criteria
- d) the number of members in the coordinating committee,
- e) the kindergarten's hours of operation.

Approved facilities must be registered in the Central Coordinating Register of Legal Entities.

Section 8. *Responsibilities of the municipality*

The municipality is the local authority for kindergartens. The municipality must provide guidance and ensure that kindergartens are operated in accordance with current rules and regulations.

The municipality is obligated to offer a place in kindergarten for children under compulsory school age that reside in the municipality, cf. Section 12 a. The pattern of development and modes of operation must be adapted to local conditions and needs.

The municipality is responsible for ensuring that kindergartens for Sami children in Sami districts are based on the Sami language and culture. In other municipalities, steps must be taken to enable Sami children to secure and develop their language and their culture.

Each municipality must establish and keep a register for use by the National Insurance Administration in connection with control of the calculation and disbursement of cash benefits pursuant to the Cash Benefit Act. The register may be checked against the National Insurance Administration's register of cash benefit recipients. The Ministry will lay down regulations containing supplementary provisions regarding the keeping of the register, the information to be contained in the register and the way this information is to be handled.

The municipality has the right of access to documents and to the premises of kindergartens insofar as this is deemed necessary in order to fulfil the responsibilities of the municipality.

The municipality must administer ear-marked government grants for non-municipal kindergartens in the municipality. The municipality cannot reduce the municipal grant pursuant to Section 14 as a consequence of such a government grant.

Section 9. *Government supervision*

The county governor must conduct supervision to verify that the municipality lawfully fulfils its obligations as the authority responsible for kindergartens pursuant to Section 8, Chapters IV, V and V A. The rules in Chapter 30 of the Local Government Act will apply for the supervision activity.

In special cases, the county governor can conduct supervision to verify that the individual kindergarten is operated in accordance with this statute and appurtenant regulations. The county governor can order kindergarten owners to rectify any matters that are in violation of the provisions of this statute. If the deadline for complying with such order is not observed, or if the matter cannot be rectified, then the county governor can order temporary or permanent closure of the kindergarten.

If the county governor, in its supervision pursuant to the second subsection, uncovers breaches of Section 14 a of the Kindergarten Act, then the county governor can apply the financial sanctions that follow from Section 16 a.

The county governor's decision concerning rectification, closure or use of financial sanctions can be appealed to the Directorate for Education and Training.

The county governor has the right of access to documents and to the premises of kindergartens insofar as this is deemed necessary in order to conduct the supervision pursuant to the first and second subsections.

Section 9 a. *Government advice and guidance*

The county governor must provide advice and guidance to municipalities and owners of kindergartens as regards the Kindergarten Act with appurtenant regulations.

Section 9 b. *Special rules concerning appeal body*

The county governor is the appeal body for decisions made by the municipality pursuant to the statute's Sections 10 and 11, Section 14 (2), Sections 16 to 18 and Sections 19 e to 19 h, and where it follows from regulations laid down pursuant to this statute.

Chapter IV. The general responsibilities etc. of the kindergarten authority

Section 10. *Approval*

The municipality must make decisions on applications for approval after assessing the suitability of the kindergarten in terms of purpose and content, cf. Sections 1, 1a and 2.

When giving approval, the municipality may set operating conditions as regards the number of children, the age of the children and the amount of time spent at the facility.

The administrative decisions of the municipality may be appealed to the county governor.

Section 11. *Family kindergartens*

Approval of family kindergartens must cover the organisation of the activity and the suitability of the individual home as premises for the operation of a family kindergarten.

The Ministry may lay down regulations regarding the approval and operation of family kindergartens.

Section 12. *Coordinated admission process in the municipality*

All approved kindergartens in the municipality must cooperate on the admission of children. The municipality must facilitate a coordinated admission process, in which account is taken of the diversity and distinctive character of the kindergarten. Great importance must be attached to the wishes and needs of users in connection with the actual admission. A coordinated admission process is intended to ensure equal treatment of children and equal treatment of municipal and privately-owned kindergartens.

Chapters IV-VI of the Public Administration Act will not apply to admissions to a kindergarten. The King may prescribe regulations regarding the processing of applications for admission to a kindergarten.

Section 12 a. *Right to a place in a kindergarten*

Children who reach one year of age no later than by the end of August in the year in which a kindergarten place is sought are entitled, upon application, to receive a place in a kindergarten from August, pursuant to this statute with appurtenant regulations.

Children who reach one year of age in September, October or November in the year in which a kindergarten place is sought are entitled, upon application, to receive a place in a kindergarten by the end of the month in which the child turns one, pursuant to this statute with appurtenant regulations.

Children are entitled to a place in a kindergarten in their municipality of residence.

The application deadline for admission is set by the municipality.

Section 13. *Priority in connection with admissions*

Children with disabilities are entitled to priority for admission to a kindergarten. An expert assessment must be carried out to determine whether the child has a disability.

Children who are the objects of an administrative decision pursuant to Sections 4-12 and 4-4, second and fourth subsections of the Child Welfare Act are entitled to priority for admission to a kindergarten.

The municipality is responsible for ensuring that children who are entitled to priority are given a place in a kindergarten.

Section 14. *Municipal grants for approved non-municipal kindergartens*

The municipality must provide grants for ordinary operation of all approved non-municipal kindergartens in the municipality, presuming that the kindergarten has sought approval before the kindergarten sector has received block financing.

The municipality can provide grants to kindergartens that apply for approval after the kindergarten sector has received block financing.

Approved non-municipal kindergartens, cf. first and second subsection, must be treated equally with municipal kindergartens as regards public grants. The King may prescribe regulations containing further provisions concerning what is meant by equal treatment.

The municipality must disburse grants to approved non-municipal kindergartens that are entitled to receive grants pursuant to the first or second subsection, in advance, each quarter, until the municipality adopts a final decision regarding grants.

The municipality's decision pursuant to the second subsection can be appealed to the county governor.

Section 14 a. *Requirements for use of public grants and parents' fees in non-municipal kindergartens*

Public grants and parents' fees must benefit the children in the kindergarten. The kindergarten may have a reasonable net profit for the year. This means that the following criteria must be met:

- a) the kindergarten can only be charged costs directly related to approved operation of the kindergarten,
- b) the kindergarten cannot, in relation to the owner or the owner's close associates, relatives or companies in the same group as the owner, undertake transactions and be charged costs on terms or in amounts that deviate from or exceed what would have been stipulated between independent parties, and
- c) the kindergarten cannot have substantially lower staffing costs per full-time place than what is common in comparable municipal kindergartens.

Owner's close associates means close associates as mentioned in Section 1-5 (1) of the Limited Liability Companies Act. Group means companies that have such a relationship as described in Section 1-3 of the Limited Liability Companies Act.

The kindergarten owner must be able to document that public grants and parents' fees are used in accordance with the objective in the first subsection.

The King can prescribe supplementary regulations regarding requirements for accounting, auditing and reporting, requirements for the kindergarten's documentation of how it uses public grants and parents' fees, and the non-municipal kindergarten's duty to provide information concerning financial matters.

Section 15. *Parents' fees*

The King may prescribe regulations containing further provisions regarding parents' fees at kindergartens, including a discount for siblings, income-based differentiation of payment and maximum payments.

Section 16. *Supervision*

The municipality must supervise facilities pursuant to this Act.

The municipality may order the rectification of inadequate or unlawful conditions at facilities that have been approved or are subject to approval. If the deadline for complying with the order is not observed, or if the condition cannot be rectified, the municipality may order the temporary or permanent closure of the facility. The municipality's administrative decision regarding closure must be sent to the county governor for information.

Instead of or in addition to closing the facility, the municipality can apply financial sanctions vis-à-vis non-municipal kindergarten if requirements pursuant to 14 a, or regulations issued in pursuance of the same provision, are not observed.

Administrative decisions regarding rectification and closure and decisions regarding application of financial sanctions may be appealed to the county governor.

Section 16 a. *Municipality's option to apply financial sanctions vis-à-vis non-municipal kindergartens*

The municipality can withhold grants to non-municipal kindergartens or reduce grants in future periods if the requirements pursuant to 14 a or in regulations issued in pursuance of Section 14 a are not observed.

If grants are used in violation of Section 14 a or regulations issued in pursuance of 14 a, the municipality can demand repayment of the grant.

Withholding grants, reduction of grants or repayment of grants pursuant to the first and second subsection must be commensurate with the nature and economic significance of the violation.

Chapter V. Staffing

Section 17. *Head teacher*

Kindergartens must have adequate pedagogical and administrative leadership.

Kindergartens must have a head teacher who is a trained kindergarten teacher or has other education on tertiary level that gives qualifications for working with children as well as pedagogical expertise.

The Ministry may issue regulations regarding pedagogical staffing and dispensation, as well as approval of professional qualifications from abroad.

Section 17 a. *Pedagogical staff*

Pedagogical leaders must be trained kindergarten teachers. Other three-year pedagogical education at tertiary level with further education in kindergarten pedagogies is equivalent to kindergarten teacher education.

The Ministry can issue regulations regarding pedagogical staff and dispensations, regulations regarding approval of professional qualifications from abroad and regulations regarding exceptions from the education requirement for staff who work in the kindergartens during night-time.

Section 18. *Basic staffing*

Staffing at the kindergarten must be sufficient to allow the staff to carry out satisfactory pedagogical activity.

The kindergarten must have at least one staff member per three children when the children are under the age of three; and one staff member per six children when the children are over the age of three. Children are considered to be over the age of three from and including the month of August in the year in which they turn three years old.

The municipality can grant dispensations from the basic staffing requirement in the second subsection, first sentence, for up to one year at a time, when so indicated by special circumstances. The owner of the kindergarten must enclose a statement from the kindergarten's coordinating committee with the application.

The municipality's decision pursuant to the third subsection may be appealed to the county governor.

Section 18 a. *Requirement for Norwegian language skills for employment in kindergartens*

In order to secure permanent or temporary employment in kindergartens, persons who have a different first language than Norwegian or Sami must have taken an examination in Norwegian and achieved level A2 in the written communication test and level B1 in the reading comprehension, listening comprehension and oral communication tests. Levels A2 and B1 must correspond to the levels described in the Common European Framework of Reference for Languages.

The requirement for a Norwegian examination pursuant to the first subsection does not apply for

- a) positions as head teacher or pedagogical leader
- b) positions in kindergartens that offer services in a different language than Norwegian
- c) persons who have completed training in Norwegian in primary or upper secondary school and have earned a passing grade in the subject
- d) persons who have at least five years relevant work experience from a Norwegian-language kindergarten or school
- e) persons who have Swedish or Danish as their first language

If deemed reasonable from a pedagogical perspective, the kindergarten owner may employ persons who do not fulfil the Norwegian examination requirement.

Section 18 b. *Requirement for Norwegian language skills for persons with foreign professional qualifications as head teacher or pedagogical leader*

In order to secure permanent or temporary employment as head teacher or pedagogical leader, persons who have foreign professional qualifications must document Norwegian skills by having

- a) completed and passed Norwegian training at an upper secondary school
- b) passed the level 3 examination in Norwegian for foreign students at the universities
- c) passed the examination from 1-year university college or university studies in Norwegian language and social studies for foreign students
- d) passed a test in Norwegian at a higher level (the Bergen test), or have
- e) taken a Norwegian exam and achieved level B2 on the tests in written presentation, reading comprehension, listening comprehension and oral communication

Owners of kindergartens can accept other documentation of Norwegian skills.

The requirement for Norwegian skills does not apply for persons who have Norwegian, Sami, Swedish or Danish as their first language. The Norwegian language skills requirement also does not apply for positions in kindergartens that offer services in a different language than Norwegian.

The Ministry can issue regulations regarding dispensation from the Norwegian language skills requirement.

Section 18 c. *Prohibition against use of clothing that partly or completely covers the face*

Persons who have permanent or temporary employment in the kindergarten or who carry out pedagogical tasks pursuant to law, must not wear articles of clothing that partly or completely cover the face during working hours. The prohibition applies when the person is in the kindergarten's area, or takes part in activities under the direction of the kindergarten.

The prohibition does not apply when the use of such clothing is due to climatic, pedagogical, health-related or safety reasons.

If anyone wears clothing in conflict with this prohibition, the kindergarten owner or the municipality must order the person to remove the article of clothing. Repeated violation of the prohibition can provide grounds for dismissal.

Section 19. *Police certificate of conduct*

Any person who is to be temporarily or permanently employed in a kindergarten must submit a police certificate of conduct as mentioned in Section 39 (1) of the Police Record Act.

Kindergarten owners and the municipality as kindergarten authority can require a police certificate of conduct as mentioned in the first subsection for other persons who are regularly present in the kindergarten, or who have significant influence on operation of the kindergarten.

Persons convicted of sexual abuse of minors are barred from permanent or temporary employment in kindergartens. In other cases, the consequences of remarks on the police certificate of conduct must be assessed in the individual case.

The Ministry will lay down supplementary regulations concerning implementation of this subsection.

Chapter V A. Special educational assistance, sign language training etc.

Section 19 a. *Right to special educational assistance*

Children under compulsory school age are entitled to special educational assistance if they have special needs. This applies whether or not they attend a kindergarten.

The objective of special educational assistance is to provide children with early help and support in development and learning, for example, language and social skills.

Special educational assistance can be given to children individually or in groups. The assistance must include an offer of counselling for the parents.

The municipality must fulfil the right to special educational assistance for children residing in the municipality.

The county municipality must fulfil the right to special educational assistance under this statute for children in child welfare institutions and children who are patients in health institutions owned by regional health trusts, or in private health institutions with agreements with regional health trusts.

The Ministry may issue regulations regarding responsibility for expenses associated with special educational assistance, who must be considered residents of the municipality, reimbursement of other municipalities' or county municipalities' expenses for special educational assistance, the county municipality's responsibility for the right to special educational assistance for children in child welfare institutions and the county municipality's responsibility for the right to special educational assistance for children who are patients in health institutions owned by regional health trusts, or in private health institutions with agreements with regional health trusts.

Section 19 b. *Cooperation with the child's parents*

Consent must be secured from the child's parents before an expert assessment is drawn up and a decision is made regarding special educational assistance. The parents are entitled to familiarise themselves with the content of the expert assessment, and to make a statement before a decision is made.

Insofar as possible, the offer of special educational assistance must be drawn up in cooperation with the child and the child's parents, and considerable emphasis must be placed on their viewpoints.

Once per year, a written overview must be prepared regarding the special educational assistance the child has received, as well as an assessment of the child's development. The parents and the municipality must receive this overview and the assessment.

If the child welfare service has assumed care pursuant to Sections 4-8 or 4-12 of the Child Welfare Act, the child welfare services are entitled to make decisions pursuant to this chapter, on behalf of the child. This applies correspondingly for decisions regarding a ban on moving the child pursuant to Section 4-8 of the Child Welfare Act and placement decisions pursuant to Section 4-6 (2) of the Child Welfare Act.

Section 19 c. *Pedagogical-psychological service*

The municipality's pedagogical-psychological service is the expert authority in cases relating to special educational assistance. The pedagogical-psychological service must ensure that the mandatory assessments are undertaken.

The pedagogical-psychological service must assist the kindergarten in the work on competence and organisational development so as to tailor the kindergarten programme offered to children with special needs.

The Ministry can issue regulations regarding other tasks for the pedagogical-psychological service.

Section 19 d. *Expert assessment*

Before the municipality or the county municipality makes a decision regarding special educational assistance, an expert assessment of the child must be undertaken to determine whether the child has a need for special educational assistance.

The expert assessment must examine and make a decision regarding e.g. the following:

- a) whether the child has a delay in development and learning difficulties
- b) realistic goals for the child's development and learning
- c) whether the child's needs can be met within the ordinary kindergarten programmes
- d) what type of assistance and organisation will contribute to the child's development and learning
- e) the necessary scope of special educational assistance, and the type of competence those who provide the assistance should have

The Ministry can issue regulations regarding the content of the expert assessment.

Section 19 e. *Decision on special educational assistance*

The municipality or the county municipality makes decisions regarding special educational assistance. If the decision deviates from the expert assessment, the reasons for this must be listed in the decision.

The decision must contain:

- a) what kind of assistance is needed
- b) how long the assistance will last
- c) how many hours of assistance
- d) how the assistance will be organised
- e) what type of competence those providing the assistance should have
- f) offer of parent counselling

If the child moves to a different municipality, the decision regarding special educational assistance must apply until a new decision is made in the case.

Section 19 f. *Right to transportation for children entitled to special educational assistance*

If free transportation is necessary in order for the child to receive special educational assistance, the child is entitled to such transportation.

The child is entitled to necessary travel companions and supervision. The municipality must provide lodging for the child when daily transportation is not prudent.

The municipality must make decisions and fulfil the right to transportation, necessary travel companion, supervision and lodging.

Section 19 g. *Children with disabilities*

The municipality must ensure that children with disabilities receive an appropriate, tailored kindergarten service. The obligation to tailor the services does not include measures that would entail a disproportionate burden for the municipality. In the assessment of whether such tailoring of services entails a disproportionate burden, particular emphasis must be placed on how much this tailoring will reduce barriers that restrict the child's function, the necessary

costs associated with tailoring the services and the facilities' resources.

The municipality makes decisions regarding tailoring of kindergarten services for children with disabilities.

Section 19 h. *Right to sign language education*

Children under compulsory school age that have sign language as their first language, or who, after an expert assessment, are found to have a need for sign language education, are entitled to such education. This right applies regardless of whether or not the child attends a kindergarten.

The municipality must fulfil the right to sign language education for children residing in the municipality. Before the municipality makes a decision regarding sign language education, an expert assessment must be made by the pedagogical-psychological service.

Consent must be obtained from the child's parents before an expert assessment is made and a decision is made regarding sign language education. The parents have the right to familiarise themselves with the content of the assessment and to make a statement before a decision is made.

Insofar as possible, the provision of sign language education must be designed in cooperation with the child and the child's parents, and significant emphasis must be placed on their viewpoints.

If the child moves to another municipality, the decision regarding sign language education will apply until a new decision is made in the case.

The right to transportation, supervision, travel companion and lodging pursuant to Section 19 f applies similarly for children who are entitled to sign language education.

The Ministry can issue regulations regarding sign language education for children under compulsory school age.

Section 19 i. *Children with a need for alternative and supplementary communication (ASK)*

Children who completely or partially lack functional speech and who need alternative and supplementary communication, must have an opportunity to use suitable forms of communication and necessary communication aids in the kindergarten.

Special pedagogical assistance pursuant to Section 19 a includes necessary training in the use of alternative and supplementary communication.

Section 19 j. *Performance of individual decisions ruled invalid*

A municipality or county municipality must carry out a decision made by a government administrative body that gives a private party the right to services pursuant to this chapter, even if the municipality or county municipality has the decision ruled invalid through legal action according to Section 1-4 a of the Dispute Act. In cases as mentioned in the first sentence, the decision can only be reversed to the detriment of the private party pursuant to Section 35, first subsection, letter c of the Public Administration Act if it is invalid because the private party, or someone who acted on behalf of the private party, has deliberately or with gross negligence supplied incorrect information or withheld information.

Chapter VI. Miscellaneous provisions

Section 20. *Duty of confidentiality*

The rules regarding the duty of confidentiality in Sections 13 to 13f of the Public Administration Act will apply correspondingly to facilities pursuant to this Act.

Section 21. *Duty to provide information to the social services and the municipal health and care service*

The kindergarten staff must assist the social services and the municipal health and care service in client cases. In their work, they must be alert to circumstances which ought to lead to action on the part of the municipality, and they must on their own initiative provide the social services or the municipal health and care service with information on such circumstances. They may only provide information on their own initiative after the client has given his/her consent, or otherwise insofar as the information may be provided notwithstanding the duty of confidentiality. Information must normally be provided by the head teacher.

Section 22. *Duty to provide information to the child welfare service*

Anyone who performs services or work under this statute must, in their work, be alert to circumstances which may lead to action on the part of the child welfare service.

Notwithstanding the duty of confidentiality, anyone who performs services or work under this statute must report to the child welfare service without undue delay

- a) when there is reason to believe that a child is being or will be mistreated, exposed to seriously deficient daily care, or other serious gross neglect,
- b) when there is reason to believe that a child has a life-threatening or other serious illness or injury and does not receive medical examination or treatment, or that a child with disabilities or a child that needs special assistance does not have his or her special needs for treatment or education met,
- c) when there is reason to believe that a child is or will be exploited in human trafficking.

Anyone who performs services or work under this statute is also obliged to provide information when obligated to do so pursuant to Section 6-4 of the Child Welfare Act.

Section 22 a. *Obtaining information from the National Population Register*

Notwithstanding the duty of confidentiality, public authorities can obtain information from the National Population Register when necessary for the performance of their tasks under this statute. The Ministry can issue regulations concerning which information can be obtained.

Section 23. *Health check-ups for children and staff*

Before a child starts to attend a kindergarten, a statement concerning the child's health must be presented. If the child has attended the local mother-and-child clinic for regular check-ups, such statement may be provided by the child's parents/guardians.

The kindergarten staff are obliged to undergo check-ups for tuberculosis pursuant to current rules.

Section 24. *Practice teaching*

The owner of the kindergarten is obligated to make the facility available for practice teaching for students undergoing kindergarten teacher training.

The kindergarten's head teacher and pedagogical leaders are obligated to provide guidance to students during such practice teaching.

Section 25. *Application of the Act on Svalbard*

The King may lay down regulations regarding the application of this Act on Svalbard and may prescribe special provisions out of consideration for local conditions.

Chapter VII. Entry into force and amendments to other Acts

Section 26. *Entry into force. Amendments to other Acts*

This Act will enter into force on the date determined by the King.¹

When this Act enters into force, Act of 5 May 1995 No. 19 relating to kindergartens will be repealed. Administrative decisions made pursuant to this statute will apply until they cease to have effect or are amended pursuant to this statute.

Act of 19 June 1997 No. 64 amending Act of 5 May 1995 No. 19 relating to kindergartens will be repealed immediately.

The Ministry may lay down regulations containing further rules regarding transitional provisions.

¹ From 1 January 2006 pursuant to Royal Decree of 17 June 2005 No. 613.